



Procedure No: EXP202401908 (PS/00184/2024)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On 29/12/23, A.A.A. (the complaining party) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity DIGITAL FLOW, S.L., with CIF: B42930743 (the complained party), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complainant states in their submission that they registered on the "WeSmartly" portal (<https://wesmartly.com/es>) owned by Digital Flow, S.L. some time ago, from which they have been receiving emails summarizing their account activity but that lack the option to "unsubscribe."

Furthermore, they have attempted to exercise their deletion rights directly with their data protection officer (dop@wesmartly.com), but Gmail indicates that this account does not exist.

Along with the complaint, the following documentation is attached:

- Dated 01/12/23; 04/12/23; 08/12/23; 12/12/23; 15/12/23; and 22/12/23, a copy of the emails sent from the address no-reply@wesmartly.com and received at the email address ***EMAIL.1 containing the following message:

Hello A.A.A.! Here is your weekly report about the visits your profile has received. You have received a total of 0 visits, of which 0 have been promoted and 0 organically. Remember that you can promote your profile to increase them! There are no student request ads this week. "Looking for students? Download our App."

- A copy of the "Privacy Policy" from the website <https://wesmartly.com/es>

(<https://wesmartly.com/es/politica-de-privacidad>) where the following paragraph can be read:

- o "(...) To exercise any of these rights, please contact us at dop@wesmartly.com or by mail to Digital Flow S.L with N.I.F B42930743 and address at Avda. Paseo marítimo Rey De España 28, 29640, Málaga, Spain. Attention: Privacy Officer. We will respond to your request to change, correct, or delete your information within a reasonable timeframe and will notify you of the action we have taken."

- Dated 26/12/23 and 28/12/23, a copy of the emails sent from the address ***EMAIL.1 to the email address dop@wesmartly.com containing the following message:

- o "Good morning, I am registered on the WeSmartly platform but I keep receiving emails every Friday and cannot locate the "unsubscribe" function that should be included in each email you send.

Therefore, if you do not proceed to UNSUBSCRIBE me from the email services and DELETE the personal data in your possession within a maximum of 24 hours from the date of receipt of this email..."

- Dated 27/12/23; 28/12/23; and 29/12/23, a copy of the emails sent from the address Delivery Subsystem, Mailer-daemon@googlemail.com and received at the email address ***EMAIL.1 containing the following message:

- o "The message could not be sent. There was a problem sending the message to dop@wesmartly.com. Check the technical details provided below or try resending it in a few minutes.

MORE INFORMATION

SECOND: On 05/02/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the complained party for analysis and to report back within one month regarding the matters raised in the complaint.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), through electronic notification, with "expiration due to lapse on 16/02/24," as recorded in the file.

Although the forwarding was validly carried out by electronic means, with the procedure being considered completed in accordance with the provisions of Article 41.5 of the LPACAP, for informational purposes, a copy was sent by postal mail to the address indicated in the Central Commercial Registry as the registered office: ***DIRECCION.1, which was returned to sender on

14/03/24, with the message "unknown," as recorded in the acknowledgment of receipt. No response has been received to this forwarding letter.

THIRD: On 29/03/24, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complaining party was admitted for processing.

FOURTH: On 11/06/24, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violations of Article 21.2 of the LSSI, classified as "minor" in Article 38.4.d).

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In the opening agreement, it was determined that the sanction that could correspond, considering the existing evidence at that time and without prejudice to what resulted from the instruction, would amount to a total of 2,000 euros (two thousand euros).

The notification of the initiation of the file was carried out in accordance with the rules established in the LPACAP. According to a certificate from the Postal Service, the initiation document sent to the address listed as the registered office in the Central Commercial Registry: ***DIRECCION.1, was returned to sender on 25/06/24, with the message "unknown," as stated in the acknowledgment of receipt.

On 08/06/24, the notification of the initiation agreement was made through an announcement in the Single Edict Board of the Official State Bulletin, in accordance with Article 44 of the LPACAP. In this announcement, the respondent is informed about the possibility of obtaining a copy of the opening agreement.

FIFTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received regarding the initiation of the file.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In the present case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the LSSI attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

First: The file contains copies of the following emails received at the claimant's email address:

- Dated 01/12/23; 04/12/23; 08/12/23; 12/12/23; 15/12/23; and 22/12/23, copies of the emails sent from the address no-reply@wesmartly.com and received at the email address ***EMAIL.1 containing the following message:

"Hello A.A.A.! Here is the weekly report about the visits your profile has received. You have received a total of 0 visits, of which 0 have been promoted and 0 organically. Remember that you can promote your profile to increase them! There are no student request ads this week. 'Looking for students? Download our App.'"

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Second: The file contains a copy of the "Privacy Policy" of the website <https://wesmartly.com/es> (<https://wesmartly.com/es/politica-de-privacidad>) where the following paragraph can be read:

- "(...) To exercise any of these rights, please contact us at dop@wesmartly.com or by mail to Digital Flow S.L with N.I.F B42930743 and address at Avda. Paseo marítimo Rey De España 28, 29640, Málaga, Spain. Attention: Privacy Officer. We will respond to your request to change, correct, or delete your information within a reasonable time and will notify you of the action we have taken."

Third: The file contains copies of the following emails sent by the claimant

- Dated 26/12/23 and 28/12/23, copies of the emails sent from the address ***EMAIL.1 to the email address dop@wesmartly.com containing the following message:

"Good morning, I am registered on the WeSmartly platform but I keep receiving emails every Friday and I cannot find the 'unsubscribe' function that should be included in each email you send. Therefore, if within a maximum period of 24 hours from the date of receipt of this email you do not proceed to REMOVE me from the email services, and to DELETE the personal data in your possession..."

Fourth: The file contains a copy of the automatic response received by the claimant to the emails sent requesting cancellation:

- Dated 27/12/23; 28/12/23; and 29/12/23, copies of the emails sent from the address Delivery Subsystem, Mailer-daemon@googlemail.com and received at the email address ***EMAIL.1 containing the following message:

"The message could not be sent. There was a problem sending the message to dop@wesmartly.com. Check the technical details provided below or try resending it in a few minutes. MORE INFORMATION"

LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Data Protection Agency by other laws" establishes that: "The provisions of Title VIII and its implementing rules shall apply to the procedures that the Spanish Data Protection Agency must process in the exercise of the powers attributed to it by other laws."

II

Summary of the Facts:

According to the complainant, they registered on the "WeSmartly" portal (<https://wesmartly.com/es>), owned by the company Digital Flow, S.L., some time ago and since then have been receiving emails summarizing their account activity, but they lack the option to "unsubscribe." Furthermore, they have attempted to exercise their rights with their data protection officer through the email address indicated in their "Privacy Policy" (dop@wesmartly.com), but they receive an error message indicating that the message could not be sent.

III

Typicity of the Infraction

Article 21 of the LSSI establishes the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous paragraph shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the customer.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

Therefore, the fact that the emails sent to the complainant do not provide a simple procedure to unsubscribe or do not include an email address or another valid electronic address where users' rights can be exercised constitutes a violation of the provisions established in Article 21.2 of the LSSI.

IV

Graduation of Sanction

The aforementioned infraction is classified as "minor" in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic communication means when such communications do not meet the requirements established in Article 21 and do not constitute a serious infraction.” Meanwhile, Article 39.1.c) of the LSSI indicates that minor infractions may be sanctioned with a fine of up to 30,000 euros.

On the other hand, Article 40 of the aforementioned Law establishes the "graduation of the amount of sanctions," taking into account the following criteria:

- a) The existence of intent.
- b) The period during which the infraction has been committed.
- c) The recurrence of infractions of the same nature, when this has been declared by a firm resolution.
- d) The nature and amount of the damages caused.
- e) The benefits obtained from the infraction.
- f) The volume of billing affected by the committed infraction.
- g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infraction, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

In accordance with these criteria, it is deemed appropriate to impose a sanction of 2,000 euros (two thousand euros) for the infraction of Article 21.2 of the LSSI.

In light of the above, by the Director of the Spanish Data Protection Agency,

IT IS RESOLVED:

FIRST: TO IMPOSE on the entity DIGITAL FLOW, S.L., with CIF: B42930743, for the infraction of Article 21.2 of the LSSI, classified as "minor" in Article 38.4.d), a sanction of 2,000 euros (two thousand euros).

SECOND: TO NOTIFY this resolution to the entity DIGITAL FLOW, S.L.

THIRD: TO WARN the sanctioned party that the imposed sanction must be fulfilled once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of 17 of

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December, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., or otherwise, it will proceed to its collection in the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, both inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, both inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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